



TERMS OF SERVICE

Project Baseline, Inc.

Version 2.0

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Prepared for Walker-Miller Energy Services

Entity: Project Baseline, Inc.

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Supersedes: Terms of Service v1.0 (effective 2026-03-10, scoped to nonprofit consulting and client portal)

Owner: Todd Walton, Principal

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1. ABOUT THESE TERMS

These Terms of Service (the "Terms") govern your use of the websites, tools, and services provided by Project Baseline, Inc., a Colorado profit corporation (EIN 27-0639457) ("Project Baseline," "PB," "we," "our," or "us"). They apply to every Project Baseline service, including consulting engagements (nonprofit and otherwise), AI implementation services, AI training workshops, subcontractor engagements, free and paid use of our AI tools, and use of our websites.

By engaging our services, submitting a form, creating a portal account, completing a payment, accessing a free tool, or otherwise using a PB service, you ("Client," "you," or "your") agree to be bound by these Terms. If you do not agree, do not use the service.

For specific engagements, a separate written Statement of Work, Master Services Agreement, or subcontractor agreement may apply in addition to these Terms. Where the separate written agreement conflicts with these Terms, the separate written agreement controls.

For privacy questions, see our Privacy Policy at <https://www.project-baseline.com/privacy>.

2. SERVICES OVERVIEW

Project Baseline provides:

2.1 NONPROFIT CONSULTING

Organizational development, grant readiness infrastructure, fundraising strategy, policy development, board governance documentation, grant writing, and related professional services for nonprofit organizations. Delivered through engagement packages described in Section 4 below.

2.2 STRATEGY CONSULTING (GENERAL)

Strategic advisory, organizational design, brand strategy, membership architecture, automation implementation, content strategy, and related professional services for small and mid-market businesses, civic organizations, and individuals. Delivered through custom engagements documented in a written Statement of Work for each engagement.

2.3 AI IMPLEMENTATION SERVICES

Custom AI agent design, workflow automation, fractional Chief AI Officer engagements, AI readiness assessments, and AI training workshops for organizations adopting AI. Delivered through custom engagements documented in a written Statement of Work for each engagement.

2.4 SUBCONTRACTOR ENGAGEMENTS

Project Baseline may serve as a subcontractor to other firms. Subcontractor engagements are governed by a written subcontractor agreement with the prime contractor in addition to these Terms. Where the subcontractor agreement conflicts with these Terms, the subcontractor agreement controls.

2.5 AI READINESS REPORT TOOL (FREE AND PAID TIERS)

The AI Readiness Report tool at ai.project-baseline.com and walkermillertad.project-baseline.com generates AI-assisted readiness assessments based on information you submit. The free tier delivers a preview summary by email. The paid tier (where offered) delivers a full report with deeper recommendations. Terms specific to this tool are in Section 8 below.

2.6 PB REPORT ENGINE (PAID REPORTS)

The PB Report Engine produces AI-assisted custom reports based on your inputs and payment. Reports include the deliverables described at the point of purchase. Terms specific to paid reports are in Section 8 below.

2.7 FREE TOOLS AND RESOURCES

Project Baseline may publish free tools, downloads, templates, and resources on our websites. Use of these is governed by Section 9 below.

3. ELIGIBILITY AND ACCOUNT RESPONSIBILITIES

You must be at least 18 years old (or the age of majority in your jurisdiction) to use our services. By using our services, you represent that:

- You have the legal capacity to enter into these Terms
- The information you provide is accurate and complete
- You have authority to act on behalf of any organization you represent
- You will keep your account credentials confidential and notify us promptly if you suspect unauthorized access
- You will use our services only for lawful purposes and in compliance with these Terms

4. NONPROFIT CONSULTING ENGAGEMENT PACKAGES

For nonprofit consulting engagements, we offer the following packages, each with defined deliverables documented at the point of engagement confirmation:

- **Essentials Package** (\$2,500): Organization overview deck, fundraising strategy, grant research calendar
- **Growth Package** (\$5,000): Essentials plus grant toolkit, organizational development plan, and additional materials
- **Grant-Ready Package** (\$7,500): Comprehensive infrastructure package with full grant application preparation
- **Advisory Package** (\$1,500/month): Ongoing monthly consulting support, with a 3-month minimum commitment
- **Grant Writing (A La Carte)**: Individual grant application services, \$1,500 to \$7,500 per grant, based on complexity and timeline (table below)

Specific deliverables for each package are outlined in the engagement confirmation provided to you before payment.

4.1 GRANT WRITING PRICING (A LA CARTE)

Pricing is based on grant complexity and timeline to deadline.

COMPLEXITY	30+ DAYS	15-30 DAYS	UNDER 15 DAYS
Simple	\$1,500	\$2,500	\$3,500
Moderate	\$2,500	\$3,500	\$5,000
Complex	\$3,500	\$5,000	\$7,500

- **Simple:** Standard applications with clear requirements and straightforward narratives
- **Moderate:** Grants requiring detailed narratives, budget justifications, and multiple attachments
- **Complex:** Federal/state grants, logic models, evaluation plans, multi-year budgets, extensive documentation

Final pricing is confirmed by PB after reviewing specific grant requirements and timeline. You will receive a quote before payment is requested.

4.2 NONPROFIT ENGAGEMENT PROCESS

1. **Intake:** You submit an intake questionnaire describing your organization and needs
2. **Discovery:** We review your submission and hold a discovery conversation
3. **Agreement:** We provide a written engagement summary including package, deliverables, timeline, and investment
4. **Payment:** By completing payment, you accept these Terms and authorize PB to begin work
5. **Production:** We produce deliverables; we may request additional materials via the client portal
6. **Delivery:** Completed deliverables are made available through your secure client portal

4.3 DELIVERY TIMELINES (NONPROFIT PACKAGES)

- Essentials: 5-7 business days from receipt of all required client materials
- Growth: 10-14 business days from receipt of all required client materials
- Grant-Ready: 14-21 business days from receipt of all required client materials
- Grant Writing: Per the grant deadline (discussed during engagement)

Timelines begin when all required client documents have been submitted. We reserve the right to adjust timelines if the scope of requested information changes during the engagement.

5. STRATEGY CONSULTING, AI SERVICES, AND SUBCONTRACTOR ENGAGEMENTS

For engagements outside the nonprofit consulting packages above (Sections 2.2, 2.3, 2.4), pricing, scope, deliverables, timeline, payment terms, and intellectual property terms are documented in a written Statement of Work or subcontractor agreement signed by both parties before work begins.

In the absence of a separate written agreement, the default terms in this document apply.

6. PAYMENT TERMS

6.1 NONPROFIT CONSULTING PAYMENTS

- **All nonprofit consulting engagements are non-refundable once payment is processed.**

By completing payment, you authorize PB to begin work immediately. No refunds, partial or full, will be issued after payment is received.

- Payment is due in full before work begins, unless otherwise agreed in writing.
- All payments are processed through Stripe.
- Advisory packages are billed monthly at the beginning of each month, with a 3-month minimum commitment.
- Grant Writing payment is due before writing begins.
- Additional work beyond the original scope requires a separate engagement and payment.

6.2 OTHER ENGAGEMENT PAYMENTS

For strategy consulting, AI services, and subcontractor engagements, payment terms (including milestones, retainers, hourly rates, refund policies, and net terms) are documented in the applicable Statement of Work or subcontractor agreement.

6.3 LATE PAYMENT

Invoices issued by Project Baseline that are past the agreed payment terms accrue interest at the lower of 1.5% per month or the maximum rate permitted by law. PB may suspend work on the engagement after 15 days past due and reserves the right to terminate the engagement after 30 days past due, with all earned fees due.

6.4 TAXES

Prices stated in the Terms or in any engagement document are exclusive of sales tax, value-added tax, or any similar tax that may apply. You are responsible for paying any applicable taxes other than taxes on Project Baseline's net income.

7. CLIENT RESPONSIBILITIES

To deliver quality work on schedule, you agree to:

- Provide accurate and complete information about your organization or business
- Submit requested documents and materials through the client portal or other agreed channel in a timely manner
- Respond to communications within three (3) business days
- Designate a primary point of contact authorized to make decisions on behalf of the engagement
- Use the services only for lawful purposes
- Comply with reasonable security practices for shared credentials, files, and access

Delays in providing requested information may extend delivery timelines. Project Baseline is not responsible for missed deadlines caused by late client submissions.

8. AI READINESS REPORT TOOL AND PB REPORT ENGINE

8.1 WHAT YOU GET

When you submit information through the AI Readiness Report tool, the Walker-Miller TAD AI Readiness Snapshot, or the PB Report Engine, we generate an AI-assisted assessment based on your inputs and deliver it by email and (where applicable) via a download link.

- **Free tier (where offered):** A preview report with summary insights
- **Paid tier (where offered):** A full report with detailed recommendations, as described at the point of purchase

8.2 WHAT YOU DO NOT GET FROM A FREE OR LOW-COST TIER

Free and low-cost AI-generated reports are not a substitute for personalized consulting. The report is based on the information you provide and on general patterns; it does not constitute legal, financial, accounting, tax, regulatory, engineering, medical, or professional advice. We recommend consulting a qualified professional before acting on any recommendation that materially affects your business, finances, or operations.

8.3 ACCEPTABLE USE

You agree not to:

- Submit false, misleading, or fraudulent information to manipulate the report
- Submit information about a third party without authorization
- Use the tool in a way that exceeds the documented rate limits or that attempts to circumvent abuse-control measures
- Attempt to reverse-engineer the underlying prompts or extract proprietary methodology
- Use the report output in a way that misrepresents Project Baseline's involvement (for example, using the report as evidence of a formal consulting engagement when none exists)
- Use the tool for purposes that violate applicable law

8.4 NO TRAINING ON YOUR INPUTS

We do not use your submissions to train artificial intelligence models. We contractually prohibit our AI sub-processors (Anthropic, OpenAI, Google Gemini) from using your submissions to train their models, and our use of their API products is subject to terms that prohibit training on API data.

8.5 RETENTION OF SUBMISSIONS

We retain submission metadata (email, IP, business name, timestamp) for 90 days for abuse-control purposes. Generated PDFs are cached on our servers for 7 days after delivery, then automatically deleted. You receive the PDF by email and control your own copy thereafter. See the Privacy Policy for full retention details.

8.6 REFUNDS FOR PAID REPORTS

If a paid report is generated, delivered, and meets the description published at the point of purchase, it is non-refundable. If a paid report fails to generate due to a technical failure on our side, we will either re-generate the report at no additional cost or refund the payment, at your option, within 30 days of the failure.

9. FREE TOOLS, TEMPLATES, AND DOWNLOADABLE RESOURCES

Free downloadable resources published on our websites (templates, guides, sample documents) are provided "as is" without warranty. You may use them for your internal business purposes. You may not (a) republish them as your own work, (b) resell them, or (c) remove attribution or branding without prior written permission.

10. DOCUMENT RETENTION AND PORTAL ACCESS (NONPROFIT PORTAL)

For nonprofit clients using the client portal:

- All deliverables and uploaded documents will remain accessible in your client portal for 90 days after your engagement is marked completed
- After 90 days, your account will be archived and portal access will be deactivated
- Upon archival, you will receive a complete zip file of all deliverables and uploaded documents via email
- It is your responsibility to download and retain copies before the 90-day period expires
- Extended portal access beyond 90 days may be available upon request, at our discretion, for an additional fee

For other engagements, deliverable retention is documented in the applicable Statement of Work.

11. INTELLECTUAL PROPERTY

11.1 DELIVERABLES

For nonprofit consulting and standard consulting engagements:

- Deliverables produced specifically for your organization become your intellectual property upon delivery and receipt of full payment
- Project Baseline retains a non-exclusive right to use general methodologies, frameworks, anonymized case data, and non-confidential elements in future work
- Client-provided materials (logos, documents, data) remain your property
- Project Baseline may reference the engagement (organization name and general scope) in marketing materials unless you opt out in writing

For strategy consulting, AI services, and subcontractor engagements, IP terms are documented in the applicable Statement of Work or subcontractor agreement. In the absence of a separate written agreement, the default IP terms above apply.

11.2 PB-OWNED IP

Project Baseline's proprietary methodology, including the Kingdom Build Framework, the PB Report Engine prompts, the TAD AI Readiness scoring logic, and any underlying scripts, prompts, or templates not delivered as part of your deliverable, remains the property of Project Baseline.

11.3 OPEN-SOURCE AND THIRD-PARTY COMPONENTS

Some PB tools incorporate open-source software or third-party components subject to their own licenses. We will identify material third-party components on request.

12. CONFIDENTIALITY

Project Baseline will treat all client-provided information as confidential and will not disclose it to third parties without your written consent, except (a) as required by law, (b) to sub-processors as described in the Privacy Policy, (c) as required to deliver the engagement and where the third party is bound by appropriate confidentiality protections.

This obligation continues for five (5) years after the engagement ends, except for information that is or becomes publicly available through no fault of Project Baseline.

You also agree to keep confidential any non-public PB information you receive in the course of the engagement (including PB methodology, prompts, prices for custom engagements, internal documents).

13. LIMITATION OF LIABILITY

Project Baseline provides consulting services, AI-assisted tools, and documents based on information provided by you and on publicly available data.

- We do not guarantee grant awards, funding outcomes, business results, or any specific outcome from the use of our deliverables or tools
- Our total liability for any claim arising from our services shall not exceed the amount paid by you to Project Baseline for the specific engagement giving rise to the claim, or, for free services, \$100
- Project Baseline is not liable for indirect, consequential, incidental, special, punitive, or exemplary damages, including lost profits, lost data, lost opportunity, or business interruption
- Nothing in these Terms limits liability that cannot be limited under applicable law (for example, liability for fraud or willful misconduct)

14. INDEMNIFICATION

You agree to indemnify and hold harmless Project Baseline, its officers, and its representatives from any claim or demand (including reasonable attorney's fees) arising out of (a) your breach of

these Terms, (b) your violation of any law or regulation, (c) your violation of any third party's rights, (d) your submission of inaccurate or unauthorized information, or (e) your use of our deliverables in a way that violates these Terms.

Project Baseline agrees to defend you against third-party claims that our deliverables, as delivered and as used in accordance with these Terms and the applicable engagement scope, infringe a US-issued patent, copyright, or trademark, up to the limit of liability in Section 13. This is your sole remedy for IP infringement claims relating to PB deliverables.

15. DISPUTE RESOLUTION

Any dispute arising from these Terms or our services will first be addressed through good-faith negotiation. If unresolved within 30 days, disputes will be submitted to binding arbitration in Cook County, Illinois, under the Commercial Arbitration Rules of the American Arbitration Association. Judgment on the arbitration award may be entered in any court of competent jurisdiction. The prevailing party may recover reasonable attorney's fees and costs.

Notwithstanding the above, either party may seek injunctive or other equitable relief in court to protect intellectual property, confidential information, or to enforce payment.

16. TERMINATION

16.1 BY EITHER PARTY

Either party may terminate an engagement with seven (7) days written notice for any reason. Either party may terminate immediately for material breach that is not cured within seven (7) days of written notice.

16.2 EFFECTS OF TERMINATION

If Project Baseline terminates without cause, a pro-rata refund for undelivered services may be issued at our discretion.

If you terminate, no refund is provided for work already completed or in progress, unless otherwise stated in an applicable Statement of Work.

For Advisory packages, either party may cancel with 30 days notice after the minimum commitment period.

Sections that by their nature should survive termination (payment of fees earned, confidentiality, intellectual property, indemnification, limitation of liability, dispute resolution, surviving provisions) survive termination.

17. MODIFICATIONS

We may update these Terms from time to time. Material changes will be communicated via email to active clients at least 30 days before the change takes effect. Continued use of our services after the effective date of a material change constitutes acceptance of the updated Terms.

Non-material changes (clarifications, typo corrections) take effect on the "Last Updated" date below.

18. GOVERNING LAW

These Terms are governed by the laws of the State of Illinois (the principal place of business of Project Baseline), without regard to conflict of law principles. The corporate domicile of Project Baseline, Inc. is the State of Colorado. Internal corporate matters are governed by Colorado law.

19. ENTIRE AGREEMENT

These Terms, together with any applicable Statement of Work, subcontractor agreement, engagement confirmation, the Privacy Policy at <https://www.project-baseline.com/privacy>, and the Trust Center disclosures at <https://www.project-baseline.com/trust>, constitute the entire agreement between you and Project Baseline regarding the services covered. They supersede any prior or contemporaneous agreement, communication, or proposal, except as specifically incorporated by reference in a written Statement of Work or subcontractor agreement.

20. SEVERABILITY AND WAIVER

If any provision of these Terms is held to be invalid or unenforceable, the remaining provisions remain in full effect. The failure of Project Baseline to enforce any right or provision is not a waiver of that right or provision.

21. ASSIGNMENT

You may not assign these Terms or any rights or obligations under them without our prior written consent. Project Baseline may assign these Terms in connection with a merger, acquisition, sale of substantially all assets, or financing transaction, subject to the privacy and notification commitments in our Privacy Policy.

22. NOTICES

Notices to Project Baseline must be sent to todd@project-baseline.com. Notices to you will be sent to the email address on file with your account or engagement. Notice is effective on the day sent for email, unless we receive a bounce or non-delivery notice.

23. CONTACT

For questions about these Terms:

Project Baseline, Inc. Email: todd@project-baseline.com Phone: (855) 616-6333 Website: <https://www.project-baseline.com>

Document control

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- Owner: Todd Walton, Principal, Project Baseline, Inc.
- Review cadence: Annual, plus event-driven on material business change

Signature: Todd Walton, Principal, Project Baseline, Inc.

Date: 2026-05-22

END OF DOCUMENT

This document is the confidential property of Project Baseline, Inc. and the intended recipient. Unauthorized distribution is prohibited.